

PROBABILITY.COM

TERMS OF USE

Last Updated: July 7, 2026

1. Introduction

Welcome to Probability ("Probability", "we", "our", or "us"). These Terms of Use ("Terms") govern your access to and use of the Probability website, applications, services, and any related products or features (collectively, the "Platform").

By creating an account, accessing, browsing, or using any part of the Platform, you acknowledge that you have read, understood, and agree to be legally bound by these Terms. If you do not agree with these Terms, you must immediately discontinue your use of the Platform.

These Terms constitute a legally binding agreement between you and Probability. They are designed to protect both you and the integrity of the Platform by establishing clear rules regarding your rights, responsibilities, and the limitations of our services.

You are responsible for ensuring that your use of the Platform complies with all laws and regulations applicable within your jurisdiction. Access to certain features may not be available in every country or region, and we reserve the right to restrict access where required by law or for regulatory, security, or operational reasons.

The Platform is intended solely for users who are legally capable of entering into binding contracts under the laws applicable to them. By using the Platform, you represent and warrant that you satisfy these eligibility requirements.

2. Description of the Platform and Its Features

Probability is a digital prediction market platform that enables users to participate in markets based on real-world events by purchasing and trading prediction shares. The Platform provides users with market information, trading tools, portfolio management features, community interactions, wallet functionality, creator tools, and related services designed to facilitate participation in prediction markets.

The Platform operates solely as a technology platform. While the Platform may appear interactive by updating information, displaying balances, refreshing market prices, calculating probabilities, or presenting personalized information based on your actions, these automated responses are generated by the Platform's software and do not constitute actions taken individually by Probability on your behalf.

For example, when you create an account, place a trade, deposit funds, upload content, send messages, or otherwise interact with the Platform, the resulting updates are automated responses to information you have voluntarily provided. These automated functions should not

be interpreted as Probability acting as your representative, broker, financial adviser, agent, or intermediary

Probability provides the infrastructure that enables users to access and participate in prediction markets. We do not make investment decisions for users, provide financial advice, recommend trading strategies, or guarantee the outcome of any prediction market.

Platform Functionality

The Platform may include, but is not limited to, the following features:

- User account registration and authentication.
- Prediction market creation and participation.
- Buying, selling, and managing prediction shares.
- Digital wallet functionality for supported transactions.
- Portfolio tracking and performance statistics.
- Market creation tools for approved creators.
- Social features including comments, discussions, and messaging.
- Notifications and account management features.
- Administrative tools for maintaining the security and integrity of the Platform.

The availability of any feature may change over time without prior notice. Probability reserves the right to modify, suspend, discontinue, or introduce new features at its sole discretion.

Automated Platform Responses

Many aspects of the Platform operate automatically. Market prices, statistics, account balances, rankings, notifications, and other information may update dynamically as a result of user activity or system calculations.

These automated updates are informational in nature and should not be interpreted as approvals, recommendations, confirmations of profitability, or guarantees of future outcomes.

Third Party Services and Wallets

Certain features of the Platform may rely on third-party service providers, payment processors, blockchain infrastructure, digital wallets, or other external technologies that are not owned or controlled by Probability.

Where users choose to connect or interact with external wallet software or blockchain-based

technologies, users acknowledge that such services operate independently of Probability.

Probability:

- does not create, own, or manage users' external wallets;
- does not possess or store users' wallet passwords, recovery phrases, or private keys;
- cannot access, recover, or reset wallet credentials;
- cannot reverse, cancel, or recover blockchain transactions once submitted;
- cannot guarantee the availability, security, or functionality of third-party wallet providers or blockchain networks.

Users are solely responsible for maintaining the security of their wallets, passwords, authentication credentials, recovery phrases, private keys, and any digital assets under their control.

Probability strongly encourages users to familiarize themselves with the operation and security features of any wallet or blockchain technology they choose to use. Failure to adequately secure wallet credentials may result in permanent loss of access to digital assets, and Probability accepts no responsibility for such losses.

Blockchain Risks

Where blockchain functionality is supported, users acknowledge that blockchain technology involves inherent technical and financial risks, including but not limited to:

- irreversible transactions;
- network congestion or delays;
- smart contract vulnerabilities;
- software bugs;
- phishing attacks;
- malware;
- hacking attempts;
- social engineering attacks;
- validator or network failures;
- blockchain forks;

- cryptoasset price volatility;
- loss of wallet credentials;
- transaction fees charged by blockchain networks.

Probability does not initiate, validate, execute, or control blockchain transactions. Any blockchain transaction initiated by a user is performed solely at that user's direction and risk.

Accordingly, Probability shall not be liable for failed transactions, delayed transactions, accidental transfers, fraudulent activity, blockchain network failures, transaction fees, or any loss arising from a user's interaction with blockchain technologies or third-party wallet providers.

Users acknowledge that they are solely responsible for understanding the technologies they choose to use and for exercising appropriate caution before initiating any transaction.

3. Your Acknowledgement Relating to the Platform and Information Provided

By accessing or using the Platform, you acknowledge and agree that all information, data, statistics, probabilities, market prices, charts, rankings, performance indicators, comments, predictions, opinions, and other content made available through the Platform are provided for informational and entertainment purposes only unless expressly stated otherwise.

You understand and acknowledge that Probability does not provide financial, investment, legal, accounting, tax, or professional advice of any kind. Nothing displayed on the Platform should be interpreted as a recommendation to buy, sell, trade, invest, or otherwise participate in any market or financial activity.

The Platform may display information generated through automated systems, user activity, mathematical models, algorithms, or third-party data sources. While Probability strives to maintain accurate and reliable information, we do not warrant or guarantee that any information presented on the Platform is complete, accurate, current, reliable, uninterrupted, or free from errors.

Prediction markets, probability estimates, market prices, trading volumes, historical statistics, and similar information are dynamic in nature and may change rapidly without notice. Past performance, historical market behavior, or previous prediction outcomes should not be relied upon as indicators of future results.

The Platform may also contain content generated or submitted by users, including comments, discussions, messages, market descriptions, creator content, or other user-generated material. Such content represents solely the opinions or statements of the respective users and does not reflect the views, endorsements, or recommendations of Probability. Probability assumes no responsibility for the accuracy, legality, completeness, or reliability of any user-generated

content.

You acknowledge that any decision you make based on information obtained through the Platform is made entirely at your own discretion and risk. You are solely responsible for conducting your own independent research and exercising your own judgment before participating in any prediction market, executing any transaction, or relying upon any information available through the Platform.

Probability makes no representation or guarantee that participation in any market will result in profit, financial gain, or any particular outcome. All prediction markets involve uncertainty, and users accept the possibility of losing some or all funds committed to a market.

You further acknowledge that technical issues, software defects, network interruptions, maintenance activities, delays, pricing discrepancies, display errors, or other unforeseen circumstances may occasionally affect the information presented on the Platform. While we make reasonable efforts to maintain reliable operation, Probability shall not be liable for any loss or damages arising from reliance upon information displayed through the Platform or from temporary inaccuracies, interruptions, or technical failures.

By continuing to use the Platform, you acknowledge that you understand these limitations and agree that you bear full responsibility for evaluating and verifying any information before acting upon it.

4. Assumption of Risk

By accessing or using the Platform, you expressly acknowledge, understand, and voluntarily assume all risks associated with your use of the Platform and your participation in any prediction market or related activity.

You acknowledge that prediction markets are inherently speculative and uncertain. The outcome of any market is dependent upon future events that may or may not occur, and there is no guarantee that your predictions, positions, or trades will result in any financial benefit. You accept full responsibility for all decisions made through your use of the Platform.

Without limiting the generality of the foregoing, you acknowledge and accept the following risks:

4.1 Market Risks

Prediction market prices fluctuate continuously based on user participation and market activity. Prices may rise or fall rapidly, and you may lose some or all funds committed to a market. No guarantee is made regarding the future value of any position or prediction.

4.2 Event Risks

Markets are based on future events that may be delayed, modified, cancelled, disputed, or

resolved differently than anticipated. Unexpected developments may significantly affect market outcomes and values.

4.3 Technical Risks

The Platform may experience temporary interruptions, maintenance periods, software bugs, hardware failures, internet outages, latency, synchronization delays, data corruption, or other technical issues that could affect your ability to access the Platform or participate in markets.

Probability does not guarantee uninterrupted availability of the Platform and shall not be responsible for losses resulting from technical failures beyond its reasonable control.

4.4 Internet and CyberSecurity Risks

Use of the Platform requires access to the internet and compatible devices. You acknowledge the inherent risks associated with internet communications, including unauthorized access, malware, viruses, phishing attacks, denial-of-service attacks, identity theft, social engineering, and other cybersecurity threats.

You are solely responsible for maintaining appropriate security measures for your devices, passwords, authentication credentials, and accounts.

4.5 Wallet and Digital Asset Risks

Where the Platform permits interaction with digital wallets or blockchain technology, you acknowledge that you are solely responsible for safeguarding your wallet, private keys, recovery phrases, passwords, and other authentication credentials.

Probability has no access to, custody of, or control over your wallet, private keys, recovery phrases, or digital assets. We cannot recover lost credentials, reverse blockchain transactions, restore lost funds, or otherwise intervene in transactions executed using your wallet.

4.6 Payment Processing Risks

Payments made through third-party payment providers are subject to the terms, availability, security practices, and operational reliability of those providers. Delays, reversals, failed payments, settlement issues, or processing errors may occur.

Probability is not responsible for failures or interruptions caused by third-party payment services.

4.7 Regulatory Risks

Laws governing prediction markets, online platforms, digital payments, cryptocurrencies, and related technologies may change at any time without prior notice. Such changes may affect the availability, legality, functionality, or continued operation of certain Platform features within your jurisdiction.

You are solely responsible for ensuring that your use of the Platform complies with all applicable laws and regulations.

4.8 Information Risks

Information displayed on the Platform, including market probabilities, statistics, historical performance, comments, rankings, charts, and other content, may be incomplete, delayed, inaccurate, or become outdated. You agree not to rely solely upon such information when making decisions.

4.9 User Conduct Risk

The Platform may contain content generated by other users, including market descriptions, comments, messages, discussions, predictions, and opinions. Probability does not verify or endorse such content and is not responsible for its accuracy, legality, or reliability.

4.10 Force Majeure

Probability shall not be liable for delays, interruptions, failures, or inability to provide services resulting from circumstances beyond its reasonable control, including but not limited to natural disasters, acts of government, war, terrorism, civil unrest, labor disputes, utility failures, internet outages, cyberattacks, pandemics, or other force majeure events.

4.11 No Guarantee of Profit

You acknowledge that participation on the Platform carries the possibility of financial loss. Probability makes no representation, warranty, or guarantee that any user will achieve profits, earnings, returns, or successful outcomes through use of the Platform.

You assume full responsibility for evaluating all risks associated with your participation and acknowledge that you participate entirely at your own risk.

By continuing to use the Platform, you confirm that you understand the nature of these risks, have independently evaluated your ability to assume them, and voluntarily accept full responsibility for any consequences arising from your use of the Platform.

5. Your Responsibilities, Representations & Prohibited Conduct

By accessing or using the Platform, you represent, warrant and agree that:

- You are at least eighteen (18) years of age or have otherwise reached the age of legal majority in your jurisdiction.
- You have the legal authority and capacity to enter into these Terms and to comply with all obligations contained herein.
- All information you provide to the Company is accurate, current and complete, and you

agree to promptly update such information whenever necessary.

- You will comply with all applicable laws, regulations and governmental requirements relating to your use of the Platform.
- You are solely responsible for all activity conducted through your account, devices, Wallets and any credentials used to access the Platform.

You acknowledge that you are solely responsible for your decisions, actions and transactions while using the Platform. The Company does not supervise, monitor or approve individual trading decisions, predictions, investments or financial strategies undertaken by users.

5.1 Prohibited Conducts

When using the Platform, you agree that you will not, directly or indirectly:

- Use the Platform for any unlawful, fraudulent or deceptive purpose.
- Violate any applicable law, regulation or governmental requirement.
- Upload, transmit or distribute malicious software, viruses, ransomware, spyware or other harmful code.
- Attempt to gain unauthorized access to any user account, server, database or restricted area of the Platform.
- Interfere with or disrupt the operation, security or availability of the Platform.
- Use bots, automated scripts, crawlers, scrapers or similar technologies except where expressly authorized by the Company.
- Manipulate markets, create misleading activity or engage in any conduct intended to artificially influence market outcomes or user behavior.
- Impersonate another individual, organization or entity or misrepresent your identity or affiliation.
- Submit false, misleading or inaccurate information.
- Harass, threaten, abuse or intimidate other users or Company personnel.
- Publish or distribute defamatory, obscene, offensive or otherwise unlawful content.
- Circumvent or attempt to circumvent any security measures implemented by the Company.
- Reverse engineer, decompile, disassemble or otherwise attempt to derive the source code

of any proprietary component of the Platform except where expressly permitted by applicable law.

- Use the Platform in any manner that could damage, disable, overload or impair its operation or interfere with another user's use and enjoyment of the Platform.
- Use the Platform to facilitate money laundering, terrorist financing, sanctions violations or any other prohibited financial activity.
- Encourage or assist any other person in engaging in any prohibited conduct described in these Terms.

The Company reserves the right to investigate suspected violations of these Terms and may suspend or terminate access to the Platform, remove content, report unlawful conduct to the appropriate authorities or take any other action deemed necessary to protect the Platform, its users or the Company.

5.2 Account Security

You are responsible for maintaining the confidentiality of your account credentials and any Wallet credentials associated with your activities on the Platform.

You agree to immediately notify the Company if you become aware of:

- Unauthorized access to your account.
- Unauthorized use of your credentials.
- A suspected security breach.
- Any activity that may compromise the integrity or security of your account or the Platform as a whole.

Failure to adequately secure your account or Wallet does not create liability on the part of the Company for any resulting loss.

There will be rewards for security notifications that may be useful to the platform as a whole.

5.3 Your Feedback

The Company welcomes feedback, suggestions, feature requests and ideas that may improve the Platform. Users may submit feedback through the Company's official communication channels, including its official social media pages, community forums, support channels or other contact methods made available by the Company.

By voluntarily submitting any feedback, suggestions, ideas or recommendations, you acknowledge and agree that:

- Your feedback is provided voluntarily and without any expectation of compensation.
- The Company may use, modify, reproduce, publish, implement or incorporate your feedback into the Platform or its services without restriction.
- The Company shall have no obligation to acknowledge, maintain confidentiality regarding, or compensate you for any feedback submitted.
- Any improvements or features developed using your feedback shall remain the exclusive property of the Company.

Nothing in this section obligates the Company to implement or act upon any feedback submitted by users.

6. Intellectual Property Rights

6.1 Ownership of the Platform

The Platform, together with all of its software, source code, object code, architecture, design, layout, user interface, graphics, logos, trademarks, service marks, trade names, text, images, videos, audio, databases, documentation, algorithms, market structures, compilations, features, functionality, and all other materials made available by the Company (collectively, the "Platform Content") are owned by, licensed to, or otherwise controlled by Probability and are protected by applicable copyright, trademark, patent, trade secret, database, and other intellectual property laws.

Except as expressly permitted under these Terms, no ownership or intellectual property rights are transferred to you through your use of the Platform.

6.2 Limited License

Subject to your continued compliance with these Terms, Probability grants you a limited, non-exclusive, non-transferable, non-sublicensable, and revocable license to access and use the Platform solely for its intended personal or internal business purposes.

This license does not grant you ownership of the Platform or any intellectual property rights associated with it.

The Company reserves the right to revoke this license at any time if you violate these Terms or if continued access is no longer appropriate.

6.3 Restrictions On Use

Unless expressly authorized in writing by the Company, you shall not:

- Copy, reproduce, distribute, republish, transmit, display, perform, modify, translate, adapt, or create derivative works from any part of the Platform or Platform Content.

- Reverse engineer, decompile, disassemble, or otherwise attempt to discover the source code or underlying technology of the Platform.
- Remove, alter, or obscure any copyright, trademark, or proprietary notices appearing on the Platform.
- Sell, license, lease, sublicense, assign, or commercially exploit any part of the Platform.
- Use the Platform or its content to build or operate a competing service or product.
- Extract, scrape, harvest, or systematically collect Platform data using automated or manual methods except where expressly authorized by the Company.
- Use the Company's trademarks, branding, logos, or trade dress without prior written permission.

Any use of the Platform beyond the limited license granted herein is strictly prohibited.

6.4 Company Trademarks

The names "Probability," the Probability logo, and all related names, logos, product names, service names, slogans, graphics, and branding used on the Platform are trademarks or proprietary assets of Probability or its licensors.

Nothing contained in these Terms or on the Platform grants any license or right to use any Company trademark without the Company's prior written consent.

6.5 User Content

You retain ownership of any lawful content that you submit, upload, publish, or otherwise make available through the Platform, including profile information, creator content, comments, discussions, chat messages, market descriptions, images, and other user-generated material ("User Content").

By submitting User Content to the Platform, you grant Probability a worldwide, non-exclusive, royalty-free, transferable, sublicensable license to host, store, reproduce, process, display, distribute, publish, modify where reasonably necessary for technical purposes, and otherwise use such User Content solely for the purpose of operating, maintaining, improving, promoting, securing, and providing the Platform and its related services.

You represent and warrant that:

- You own or have all necessary rights to the User Content you submit.
- Your User Content does not infringe the intellectual property, privacy, publicity, or other legal rights of any third party.

- Your User Content complies with these Terms and all applicable laws.

You remain solely responsible for all User Content you submit to the Platform.

6.6 Feedback and Suggestions

Any ideas, recommendations, proposals, comments, feature requests, improvements, or other feedback voluntarily submitted to Probability may be used by the Company without restriction and without any obligation to compensate or credit you

You acknowledge that the Company may incorporate such feedback into its products, services, software, or future developments and that all resulting intellectual property shall belong exclusively to Probability.

6.7 Reservation Of Rights

Except for the limited license expressly granted under these Terms, all rights, title, and interest in and to the Platform, Platform Content, and all associated intellectual property remain exclusively vested in Probability and its licensors.

No rights shall be implied by waiver, estoppel, or otherwise.

All rights not expressly granted to users under these Terms are reserved by the Company.

7. Arbitration Agreement, Class Action Waiver & General Terms

7.1 Acceptance of this Arbitration Agreement

By accessing or using the Platform, creating an account, or otherwise agreeing to these Terms, you expressly acknowledge that you have read, understood, and agreed to this Arbitration Agreement and Class Action Waiver.

This Arbitration Agreement forms an essential part of these Terms and survives termination of your account or your use of the Platform.

7.2 Agreement to Arbitrate

You and Probability agree that any dispute, claim, controversy, or cause of action arising out of or relating to these Terms, the Platform, its Interfaces, Features, services, products, content, your account, or the relationship between you and the Company, including any dispute concerning the interpretation, enforceability, scope, validity, termination, or applicability of this Arbitration Agreement, shall be resolved exclusively through final and binding arbitration.

Arbitration shall be conducted before a single neutral arbitrator in accordance with the applicable arbitration laws of the jurisdiction governing these Terms unless otherwise agreed by the parties.

The arbitrator shall have exclusive authority to determine all issues relating to the existence, validity, enforceability, interpretation, and scope of this Arbitration Agreement.

Nothing contained herein prevents either party from seeking temporary or provisional injunctive relief from a court of competent jurisdiction where necessary to preserve rights pending arbitration.

7.3 Scope of Arbitration

This Arbitration Agreement applies to:

- all existing disputes between you and the Company;
- all pending disputes;
- all future disputes;
- statutory claims;
- contractual claims;
- tort claims;
- equitable claims;
- claims arising before or after acceptance of these Terms; and
- claims arising after termination of your account or your relationship with the Company.

This Arbitration Agreement shall be interpreted broadly to the maximum extent permitted by applicable law.

7.4 Binding Nature of Agreement

The arbitration award rendered by the arbitrator shall be final, binding, and enforceable upon both parties.

Judgment upon the arbitration award may be entered in any court having jurisdiction.

Except where prohibited by applicable law, neither party shall have the right to appeal the arbitrator's decision.

7.5 Good Faith Resolution

Before commencing arbitration, the parties agree to make reasonable efforts to resolve disputes informally.

You agree to first notify the Company of your dispute by contacting the Company's official

support channels and providing a written description of the issue together with any supporting information.

Both parties agree to negotiate in good faith for a reasonable period before initiating arbitration proceedings.

7.6 Waiver of Class Relief and Collective Actions

To the fullest extent permitted by applicable law, you and the Company expressly agree that all disputes shall be resolved solely on an individual basis.

Neither you nor the Company may:

- commence or participate in any class action;
- participate in any collective action;
- act as a class representative;
- act as a private attorney general;
- bring or participate in any representative proceeding;
- consolidate claims with those of any other individual; or
- seek relief on behalf of any other person

The arbitrator shall have no authority to consolidate multiple claims or preside over any class, collective, consolidated, or representative proceeding.

You acknowledge that by agreeing to arbitration, you waive your right to have disputes heard before a judge or jury and waive the ability to participate in class or representative litigation.

7.7 Intellectual Property Claims

Notwithstanding the foregoing Arbitration Agreement, either party may seek appropriate equitable relief before a court of competent jurisdiction with respect to claims involving:

- copyright infringement;
- trademark infringement;
- trade secret misappropriation;
- patent infringement;
- misuse of confidential information; or

- other intellectual property rights.

Such proceedings shall not constitute a waiver of the right to arbitrate any remaining claims.

7.8 Separate Agreement and Applicable Law

This Arbitration Agreement shall be governed by the arbitration laws applicable within the jurisdiction governing these Terms.

If any provision of this Arbitration Agreement conflicts with mandatory provisions of applicable law, such mandatory provisions shall prevail only to the extent of that conflict.

The remaining provisions shall continue in full force and effect.

7.9 Option to opt out

Where required by applicable law, users may opt out of this Arbitration Agreement by providing written notice to the Company within thirty (30) days after first accepting these Terms.

The notice must clearly state:

- your full legal name;
- the email address associated with your account;
- your intention to opt out of arbitration; and
- sufficient information to identify your account.

Failure to submit a valid opt-out notice within the applicable period shall constitute acceptance of this Arbitration Agreement.

Opting out of arbitration shall not affect any other provision contained in these Terms.

7.10 Severability

If any portion of this Arbitration Agreement or Class Action Waiver is determined to be invalid, unlawful, or unenforceable, only that specific provision shall be severed.

The remaining provisions shall remain valid, enforceable, and continue in full force and effect.

If the prohibition against class or representative proceedings is found unenforceable with respect to a particular claim, then only that claim shall proceed before a court of competent jurisdiction, while all remaining claims shall continue to be arbitrated.

8. General Terms

8.1 Entire Agreement

These Terms, together with the Privacy Policy and any additional policies expressly incorporated by reference, constitute the complete and entire agreement between you and Probability regarding your use of the Platform.

They supersede all prior understandings, communications, negotiations, representations, or agreements relating to the subject matter herein.

8.2 No Partnerships or Agency

Nothing contained in these Terms shall be construed as creating any partnership, joint venture, employment relationship, fiduciary relationship, or agency relationship between you and the Company.

Neither party has authority to bind the other.

8.3 Assignment

You may not assign, delegate, transfer, sublicense, or otherwise transfer any rights or obligations arising under these Terms without the Company's prior written consent.

The Company may assign or transfer these Terms, in whole or in part, without restriction, including in connection with a merger, acquisition, corporate restructuring, financing, or sale of assets.

8.4 Waiver

Failure by the Company to enforce any provision of these Terms shall not constitute a waiver of that provision or of any other provision.

Any waiver must be made expressly in writing and signed by an authorized representative of the Company.

8.5 Remedies

You acknowledge that any breach of these Terms may cause irreparable harm to the Company for which monetary damages alone may be insufficient.

Accordingly, the Company shall be entitled to seek equitable relief, including temporary restraining orders, preliminary injunctions, permanent injunctions, and specific performance, in addition to any other remedies available under applicable law.

The exercise of one remedy shall not prevent the exercise of any other remedy available to the Company.

8.6 Survival

Any provision of these Terms that by its nature is intended to survive termination shall continue

in effect after termination of your account or your use of the Platform, including but not limited to provisions relating to intellectual property, limitation of liability, indemnification, arbitration, dispute resolution, disclaimers, payment obligations, and governing law.

8.7 Contact Information

Questions regarding these Terms, the Platform, or your rights and obligations under this Agreement may be directed to the Company's official support channels as made available through the Platform.

By continuing to access or use Probability, you acknowledge that you have carefully read, understood, and agreed to be legally bound by these Terms of Use in their entirety.